

Ajay Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2023 · WRIT - C No. - 11755 of 2023 · **Disposed; final assessment to follow Supply Code after objection.**

HEADNOTE

A writ against a provisional assessment notice in an electricity-theft case was disposed of without interference, the final assessment being yet to be passed. The department may pass that order only after considering the petitioner's objection, and strictly in accordance with the procedure in the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ajay Singh filed a writ petition against the State of Uttar Pradesh and two others, challenging a provisional assessment notice dated 30 October 2021 issued by respondent no. 2 in a case of theft of electricity. Counsel for the respondent electricity department told the Court that a final assessment order had not yet been passed, and that the department would pass that order only after considering the objection already filed by the petitioner.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

provisional theft assessment; final order yet to be passed

HOLDING

No interference is warranted with a provisional assessment notice in a case of theft of electricity while the final assessment is still to be passed. The department is to pass the final assessment only after considering the consumer's objection, and strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

procedural-listing-no-construction The order names the U.P. Electricity Supply Code, 2005 as the procedure for the final assessment but construes no clause, and disposes of the writ without examining the provisional notice on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT NOTICE DATED 30 OCTOBER 2021, OR THE ALLEGATION OF THEFT, IS SUSTAINABLE.

Final assessment remains to be passed after the petitioner's objection, under the Supply Code procedure. ¶ 1